

26STCV11770 26STCV11770

County: los-angeles

Division: Civil Law and Motion

Department: 307

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Case Number: 26STCV11770 Hearing Date: September 28, 2026 Dept: 307

16 TENTATIVE RULING 9:00 a.m., Monday, Sept. 28, 2026

ERNESTINA

VERONICA BLANCO ROLON, et al. v. MOISES FRAGOSO, et al. [26STCV11770]

DEFENDANTS

MOISES FRAGOSO, INDIVIDUALLY AND AS TRUSTEE OF THE BYPASS TRUST, CREATED UNDER THE AGUILA TRUST, DATED DECEMBER 24, 2007 AND SHALOME PROPERTY MANAGEMENT, LLC'S MOTION TO STRIKE PORTIONS OF THE COMPLAINT

NOTICE: DEFECTIVE

BUT WAIVED[1]

MEET AND

CONFER: DEFECTIVE Defendants'

counsel only declares that Plaintiff's counsel expressed a "willingness" to meet and confer telephonically, but fails to indicate whether a telephonic meeting occurred in compliance with Code Civ. Proc. § 430.41. (Arushanyan Decl., ¶ 3)

TIMELINE:

landlord-tenant dispute re: habitability issues at residence

Circa 2/1/2013 to Present: Defendant Shalome

Property Management, LLC ("Shalome") manages the residential property located at 7034 Mountain View Ave., Huntington Park, CA 90255 (the "Property") on behalf of Property owners and co-managers, Defendants Moises Fragoso, individually and as Trustee of the Bypass Trust, Created Under the Aguila

Trust, Dated December 24, 2007 ("Fragoso"), Baks Investments, LLC ("Baks"), and 2216 Randolph, LLC ("Randolph").

Plaintiffs

Ernestina Veronica Blanco Rolon and Rufino

Garcia-Landeta (the "Rolon Family"), Rosa Angel Rivera and Jose Natividad

Castro Jimenez (the "Rivera Family"), and Juan Saucedo Garcia and Nicolasa

Sanchez Ortega (the "Garcia Family") (collectively, "Plaintiffs") are/were

tenants of the Property as follows:

.

1985

to 12/15/2025: The Garcia Family resides in Apt. 1 of the Property.

.

2/1990

to Present: The Rolon Family resides in Apt. D of the Property.

.

8/2018

to 10/31/2025: The Rivera Family resides in Apt. L the Property.

Unknown

Date(s): Shalome, Fragoso, Baks, and Randolph allegedly fail to

maintain

the Property, leading to various habitability and safety issues, including a

cockroach infestation, widespread water leaks, chronic mold, and physical

defects (e.g. holes in the walls and floors, broken windows, crumbling walls, and

peeling paint).

4/13/2026: Plaintiff files the Complaint,

alleging causes of action for:

1. Tortious Breach of Implied

Warranty of Habitability

2. Negligence

3. Intentional Infliction of

Emotional Distress

4. Private Nuisance

5. Violation of Huntington Park

Municipal Code sections 8-21

6. Violation of Business and

Professions Code section 17200

9/3/2026: Fragoso and Shalome (collectively,
“Moving Defendants”) file this Motion to Strike, which is followed by
Plaintiffs’ Opposition (9/3/2026) and Moving Defendants’ Reply (9/21/2026).

TENTATIVE

RULING: DEFENDANTS MOISES FRAGOSO, INDIVIDUALLY AND AS TRUSTEE OF THE BYPASS
TRUST, CREATED UNDER THE AGUILA TRUST, DATED DECEMBER 24, 2007 AND SHALOME
PROPERTY MANAGEMENT, LLC’S MOTION TO STRIKE is GRANTED with LEAVE TO AMEND.

MOTION TO STRIKE

Defendants moves to strike

Plaintiffs’ request for punitive/exemplary damages from the Complaint pursuant
to Code of Civil Procedure section 436. Plaintiffs seek punitive damages in
connection with the first through fourth causes of action in the Complaint.
(Compl., ¶¶ 34, 43, 48, 56; Prayer, ¶¶ 72, 75, 78, 81.)

Punitive damages are

recoverable in tort actions where “the defendant has been guilty of oppression,
fraud, or malice.” (Civ. Code § 3294, subd. (a).) California follows a
heightened pleading standard for punitive damages— vague and conclusory
allegations are insufficient. (G. D. Searle & Co. v. Superior Ct. (Ct.
App. 1975) 49 Cal. App. 3d 22, 29.) In the case of an entity defendant, “the punitive damage statute requires proof of
malice among corporate leaders,” (i.e. the officers, directors, or managing agents).
(Cruz v. HomeBase (2000) 83 Cal. App. 4th 160, 167, citing Civ. Code, §
3294, subd. (b); Grieves v. Superior Ct. (1984) 157 Cal. App. 3d 159,
167 [“a corporate employer may be liable only if the knowledge, authorization,
ratification or act was on the part of an officer, director or managing agent
of the corporation.”].)

The issue with Plaintiffs'

punitive damages request here is that it impermissibly relies on group pleading without tailoring the allegations of malice, oppression and/or fraud to each individual defendant, rendering the punitive damages request largely vague and conclusory. For example, Plaintiffs allege that Defendants (collectively) "had actual and/or constructive notice" of the defects on the Property, but "repeatedly and intentionally ignored" the tenant's complaints and failed to repair and abate the defects to save money. (Compl., ¶¶ 16, 18.) Plaintiffs also vaguely allege that Defendants conduct was "directed or ratified by Defendants and their respective employees," without naming any particular individuals or employees acting on behalf of the Property's owners and/or managers. (Id. ¶ 19.) Plaintiffs allege that Defendants (collectively) acted maliciously and "with the intent to knowingly take advantage of, oppress, and injure Plaintiffs" in conscious disregard for the rights [and] safety of Plaintiffs." (Id. ¶¶ 34, 43, 48, 56.)

While,

in theory, these types of allegations could suffice to show the requisite malice and/or oppression for punitive damages if tailored to the specific defendants, Plaintiffs have not identified the specific conduct of each Defendant to permit such a conclusion with respect to the Moving Defendants specifically. There are no specific allegations identifying the acts or omissions of either Fragoso or Shalome, in particular, to justify the finding that Moving Defendants themselves acted maliciously or oppressively (as opposed to the other various defendants). Plaintiffs vaguely group all four property managers/owners together without specifying the roles of each distinct individual or entity. With respect to Shalome in particular, an entity defendant, Plaintiffs do not identify any particular corporate leader acting on behalf of Shalome who engaged in malicious, oppressive, or fraudulent conduct on behalf of the entity as required under Civil Code section 3294, subd. (b). In sum, more factual details tailored to the conduct of the specific Moving Defendants are required for Plaintiffs to overcome the heightened pleading standard for punitive damages.

Therefore, Moving Defendants'

motion to strike the request for punitive damages is GRANTED with LEAVE TO AMEND.

Defendant Moises

Fragoso, individually and as Trustee of the Bypass Trust, and Shalome Property

Management, LLC to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court website on 9/24/26 at 2 p.m.

[1] Moving Defendants served the motion electronically but failed to extend the notice period by the requisite two additional days for electronic service pursuant to Code Civ. Proc., § 1010.6, subd. (a)(3)(B). Even so, Plaintiffs fail to raise this notice defect, and their opposition addresses the merits of the motion, thus waiving the notice defect. (Carlton v. Quintz (2000) 77 Cal.App.4th 690, 697 ["It is well settled that the appearance of a party at the hearing of a motion, and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion."].)